

DELAWARE SBI MANDATORY/AUTOMATIC EXPUNGEMENT PROCESS GUIDE

ROUTE:

obligation:track-pathway:DE:de_mandatory_expungement:mandatory-and-automatic-expungement-under-11-del-c-4373-and-4373a

THIS IS AN AGENCY-APPLICATION PREPARATION GUIDE, NOT AN OFFICIAL FORM AND NOT A COURT FILING.

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WHAT THIS GUIDE IS - AND IS NOT

This is route-scoped process guidance only. It is not a Delaware SBI application, is not a court form, and is not filed or submitted anywhere. LegalEase does not offer checkout or a filing packet on this route.

The label DE-SBI-MANDATORY-EXPUNGEMENT-APPLICATION is an internal repository description, not a title or form number assigned by Delaware. Do not print, sign, mail, upload, or file this guide as a substitute application.

Under the committed Delaware record, SBI identifies mandatory-eligible cases monthly for automatic expungement under Sec. 4373A. That automatic branch requires no participant filing. This guide does not decide whether a person or case is eligible.

EXACT SBI DESTINATION AND NEXT STEPS

Required before you use this process: obtain the certified Delaware criminal history. The committed Delaware record states it this way: "Obtain the certified SBI history and submit it with the mandatory-expungement application. LegalEase does not review the history itself." and "Submit the mandatory-expungement application and materials to the State Bureau of Identification with the certified criminal history." How that certified history is ordered, and what it now costs, are not source-approved and are not stated here; confirm them with SBI.

Check your answer to "What were the exact charges and statute sections, and were they violations, misdemeanors or felonies?" against the certified Delaware criminal history, and correct the packet if they disagree.

Start with the Delaware State Police, State Bureau of Identification, Expungement Section. Call 302-739-5884. The official process page is <https://dsp.delaware.gov/expungements/>.

Tell SBI you are checking mandatory or automatic expungement under 11 Del. C. Secs. 4373 and 4373A. Ask whether the automatic process has reached the case and what identifying or case information SBI needs to review it.

If SBI determines that the person is eligible, SBI provides an eligibility letter and instructions. Wait for that letter and follow only the current directions it contains. Do not send this guide, invent an application, or send a payment based on this guide. No mailing address, portal, or submission method is asserted here.

Cost, as the committed Delaware record states it: the court instructions state a \$75 filing fee on the mandatory path after the SBI letter. The SBI's own current fee is not source-approved and is not stated here; confirm it with SBI.

Fee waiver and conversion, as the same record states it: under 11 Del. C. Sec. 4372(l), if an outstanding fine or fee is unpaid for reasons other than wilful noncompliance and the person is otherwise eligible, the court may grant the expungement and waive the fines or fees or convert them to a civil judgment. Unpaid fines, fees, or restitution where that waiver or conversion is needed is a stop condition on this route, not a step to take from this guide.

SELF-HELP STOP

Stop and get help before taking another step if SBI says the case is not mandatory-eligible, directs you to a court petition, or the record does not clear after SBI's process. Those events leave this guidance-only route.

Stop and get help if there is uncertainty about every charge in a case, waiting-period dates, prior or later convictions, pending charges, incarceration, probation or parole, unpaid fines, fees or restitution, or an offense involving domestic violence, a child, a vulnerable adult, a violent felony, or mixed traffic and nontraffic charges.

Stop and obtain appropriate legal advice if the goal is to attack the conviction rather than clear the record, or if immigration, firearms, professional licensing, a registry, or law-enforcement employment may be affected.

FACTS YOU MUST CONFIRM BEFORE ACTING

Current record and automatic-expungement status:

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Check with: the participant's current record and the Delaware SBI Expungement Section at 302-739-5884

Every case number, court, county, charge, and statute section:

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Check with: the court records and the participant's current Delaware criminal-history record

Disposition, conviction, release, and sentence-completion dates:

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Check with: certified court and correctional records

Prior, later, and pending criminal matters:

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Check with: the participant's complete criminal-history and court records and SBI

Current incarceration, parole, or probation status:

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Check with: the supervising or correctional agency and the sentencing court

Fines, fees, and restitution status:

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Check with: the court clerk or agency maintaining the official balance

SBI eligibility letter and current instructions:

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Check with: the eligibility letter and instructions supplied directly by Delaware SBI

PROTECTED ITEMS

Do not sign or date this guide. Sign and date only the agency's own request or application, in the manner that agency directs.

No court, clerk, prosecutor, agency, notary, or hearing-officer field is completed anywhere in this guide.

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